



15A NCAC 02K .0224 - Additional Requirements for Dams that Impound Coal Combustion Residuals

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DEMLR Dam Safety Rulemaking

- Purpose
- Methodology
- Major Components



Dam Safety CCR Rulemaking Purpose

- Incorporate aspects of EPA's CCR rules that are either not found in or differ from North Carolina's Dam Safety Law or Rules.
- Ensure all environmental and public safety aspects of EPA's CCR rules are incorporated.

Dam Safety CCR Rulemaking Methodology

In developing Proposed Rule Amendments, DEMLR Staff Reviewed/Compared EPA's Rule with:

- N.C. Dam Safety Law of 1967
- N.C. Dam Safety Administrative Code 15A NCAC 2K

Dam Safety CCR Rulemaking Methodology

- For a given Dam Safety requirement, if the existing NC Law and Administrative Code were **equal to or more restrictive** than EPA CCR Rule, no need to incorporate in proposed rule.
- If the EPA CCR Rule was **more restrictive**, we incorporated the EPA language to supersede the existing Dam Safety Rules.
- NOTE: All CCR dams required to adhere to existing NC code and the new CCR rule section.

Major Components of Dam Safety CCR Rule

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Incorporates major components of EPA CCR Rule that are different from existing Rules and Regulations:

- Classification of dam requirements
- Spillway design requirements
- Conduit requirements
- Structural stability and slope protection requirements
- Inspection requirements

Major Components of Dam Safety CCR Rule

Regulatory Impact Analysis:

State Government:	Minimal Costs
Local Government:	None
Regulated Utilities:	None
Federal Government:	None
Substantial economic impact:	No

Questions and Answers

Additional information on the proposed rule can be found at: <https://deq.nc.gov/documents/15a-ncac-02k-0224-additional-requirements-dams-impound-coal-combustion-residual>

Comments on the proposed rule should be directed to: Andrew.brooks@ncdenr.gov

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Questions about the rule can be directed to:

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